[Public Land Order 2865]

CALIFORNIA AND MONTANA

Partly Revoking the Departmental Order of April 5, 1905; Revoking Executive Order No. 1793 of July 3, 1913

By virtue of the authority vested in the President by section 1 of the Act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, and by virtue of the authority contained in Section 3 of the Act of June 17, 1902 (32 Stat. 388; 43 U.S.C. 416), it is ordered as follows:

1. The Departmental Order of April 5, 1905, which withdrew lands in California for reclamation purposes in connection with the Sacramento Valley Project is hereby revoked so far as it affects the following-described lands:

[Sacramento 073657]

MOUNT DIABLO MERIDIAN

T. 15 N., R. 6 W.,
Sec. 20, SE¼NW¼, and E½SW¼.

The areas described aggregate approximately 120 acres. The lands are patented.

2. Executive Order No. 1793 of July 3, 1913 which withdrew the following described public land in Montana for use of the Forest Service as a nursery site in connection with the administration of the Helena National Forest, is hereby revoked:

[Montana 043816]

MONTANA PRINCIPAL MERIDIAN

T. 7 N., R. 3 W.,
Sec. 31, NE¼SW¼.

Containing approximately 40 acres.

3. Until 10:00 a.m. on July 19, 1963, the State of Montana shall have a preferred right of application to select the lands released from withdrawal by paragraph 2 of this order as provided by subsection (c) of section 2 of the Act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 851, 852). On and after that date and hour the land shall become subject to application, petition, location, and selection generally, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications except preference right applications from the State of Montana received at or prior to 10:00 a.m. on July 19, 1963, shall be considered as simultaneously filed at that time. The lands have been open to applications and offers under the mineral leasing laws, and to location for metalliferous minerals. They will be open to location for nonmetalliferous minerals under the United States mining laws at 10:00 a.m. on July 19, 1963.

Inquiries should be addressed to the Manager, Land Office, Bureau of Land Management, Billings, Montana.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

JANUARY 18, 1963.

[F.R. Doc. 63-763; Filed, Jan. 23, 1963; 8:47 a.m.]

[Public Land Order 2866]

[Los Angeles 0165037]

CALIFORNIA

Revoking Air Navigation Site Withdrawal No. 133

By virtue of the authority contained in section 4 of the Act of May 24, 1928, (45 Stat. 729; 49 U.S.C. 214), it is ordered as follows:

1. The Departmental Order of January 13, 1940, which withdrew the following-described lands for use of the Civil Aeronautics Authority in the maintenance of air navigation facilities, as Air Navigation Site Withdrawal No. 133, California, is hereby revoked:

MOUNT DIABLO MERIDIAN

T. 27 S., R. 39 E.,
Sec. 12, W½W½;
Sec. 13, NW¼NW¼.

The areas described aggregate approximately 200 acres.

2. Until 10:00 a.m. on July 19, 1963, the State of California shall have a preferred right of application to select the lands as provided by subsection (c) of section 2 of the Act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 851, 852). On and after that date and hour the lands shall be subject to application, petition, location and selection generally, including locations under the United States mining laws, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications except preference right applications from the State, received at or prior to 10:00 a.m. on July 19, 1963, shall be considered as simultaneously filed at that time.

3. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their applications, setting forth all facts relevant to their claims.

Inquiries should be addressed to the Manager, Land Office, Bureau of Land Management, Riverside, California.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

JANUARY 18, 1963.

[F.R. Doc. 63-764; Filed, Jan. 23, 1963; 8:47 a.m.]

[Public Land Order 2867]

[Sacramento 062482]

CALIFORNIA

Order Opening Public Lands

1. The Departmental Order of June 19, 1940 revoked certain stock driveway withdrawals as to the following described lands, but did not open them to entry under the public land laws:

MOUNT DIABLO MERIDIAN

Stock Driveway No. 183

T. 36 N., R. 9 E.,
Sec. 13, S½SW¼, N½SE¼, SW¼SE¼;
Sec. 23, E½NE¼, S½;
Sec. 24, N½NW¼;
Sec. 26, NW¼;
Sec. 26, NE¼, S½;
Sec. 33, NE¼, NW¼SE¼, E½SE¼;
Sec. 34, NW¼.

Stock Driveway No. 224½, Calif. No. 16

T. 36 N., R. 7 E.,
Sec. 2, Lots 3, 4, 5, 6, 11 and 12;
Sec. 3, Lots 1, 2, 6, 7, 8, 9, 10 and 11.

Stock Driveways No. 105 and 183

T. 35 N., R. 7 E.,
Sec. 11, Lots 1 and 2;
Sec. 12, Lots 1, 2, 3, 4;
Sec. 13, N½N½;
Sec. 14, N½NE¼.
T. 35 N., R. 8 E.,
Frl. Sec. 7;
Frl. Sec. 8;
Frl. Sec. 9;
Frl. Sec. 10;
Frl. Sec. 11;
Frl. Sec. 12;
Sec. 13, N½N½;
Sec. 14, N½N½;
Sec. 15, N½N½;
Sec. 18, N½N½.
T. 35 N., R. 9 E.,
Frl. Sec. 7;
Frl. Sec. 8;
Frl. Sec. 9;
Sec. 10, Lots 3 and 4;
Sec. 11, Lots 1, 2, and 3;
Sec. 12, Lots 1, 2, 3, and 4;
Sec. 13, N½N½;
Sec. 14, N½NE¼, NE¼NW¼.
T. 36 N., R. 9 E.,
Sec. 31, S½S½;
Sec. 32, SE¼, S½SW¼;
Sec. 33, S½NW¼, W½SW¼.

Stock Driveway No. 183, Calif. No. 13 (Enlarged)

T. 36 N., R. 9 E.,
Sec. 12, SE¼;
Sec. 13, NE¼.
T. 36 N., R. 10 E.,
Sec. 7, NW¼NE¼, NW¼, W½SW¼.

The above described areas aggregate approximately 5,251 acres. Some of the lands are patented, and some are withdrawn for power purposes.

2. The lands are in the vicinities of Little Valley, and Hayden Hill, California. The topography varies from flat to gentle to steep mountain slopes. The soils are stony, dark brown loams.

3. Subject to any valid existing rights and equitable claims, the requirements of applicable law, rules and regulations, and the provisions of any existing withdrawals, the public lands restored hereby are opened to filing of applications, selections and locations in accordance with the following:

(a) Until 10:00 a.m. on July 19, 1963, the State of California shall have a preferred right of application to select the lands in accordance with and subject to the provisions of subsection (c) of section 2 of the Act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 851, 852), and the regulations in 43 CFR.

(b) All valid applications and selections under the nonmineral public land laws other than any from the State of California presented prior to 10:00 a.m. on July 19, 1963, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

(c) The lands have been open to applications and offers under the mineral leasing laws, and to location under the United States mining laws.